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Seeks to amend the CGST Rules, 2017 - 45/2017 - Central GST (CGST)

Government of India

Ministry of Finance

Department of Revenue

Central Board of Excise and Customs

Notification No. 45/2017 – Central Tax

New Delhi, the 13th October, 2017

G.S.R. 1251 (E):- In exercise of the powers conferred by section 164 of the Central Goods and Services Tax Act, 2017 (12 of 2017), the Central Government hereby makes the following rules further to amend the Central Goods and Services Tax Rules, 2017, namely:-

(1) These rules may be called the Central Goods and Services Tax (Ninth Amendment) Rules, 2017.

(2) They shall come into force on the date# of their publication in the Official Gazette.

2. In the Central Goods and Services Tax Rules, 2017, –

(i) in rule 3, for sub-rule (3A), the following sub-rule shall be substituted, namely:-

"(3A)Notwithstanding anything contained in sub-rules (1), (2) and (3), a person who has been granted registration on a provisional basis under rule 24 or who has been granted certificate of registration under sub-rule (1) of rule 10 may opt to pay tax under section 10 with effect from the first day of the month immediately succeeding the month in which he files an intimation in **FORM GST CMP-02**, on the common portal either directly or through a Facilitation Centre notified by the Commissioner, on or before the 31st day of March, 2018, and shall furnish the statement in **FORM GST ITC-03** in accordance with the provisions of sub-rule (4) of rule 44 within a period of ninety days from the day on which such person commences to pay tax under section 10:

Provided that the said persons shall not be allowed to furnish the declaration in **FORM GST TRAN-1** after the statement in **FORM GST ITC-03** has been furnished.";

(ii) after rule 46, the following rule shall be inserted, namely:-

"**46A. Invoice-cum-bill of supply.**- Notwithstanding anything contained in rule 46 or rule 49 or rule 54, where a registered person is supplying taxable as well as exempted goods or services or both to an unregistered person, a single "invoice-cum-bill of supply" may be issued for all such supplies.";

(iii) in rule 54, in sub-rule (2),

(a) for the words "tax invoice" the words "consolidated tax invoice" shall be substituted;

(b) after the words "by whatever name called", the words "for the supply of services made during a month at the end of the month" shall be inserted;

(iv) in rule 62, in sub-rule (1), the following proviso shall be inserted, namely:-

"Provided that the registered person who opts to pay tax under section 10 with effect from the first day of a month which is not the first month of a quarter shall furnish the return in **FORM GSTR-4** for that period of the quarter for which he has paid tax under section 10 and shall furnish the returns as applicable to him for the period of the quarter prior to opting to pay tax under section 10.";

(v) in **FORM GST CMP-02**, for the words, figures and brackets "See rule 3(2)", the words, figures, brackets and letter "See rule 3(3) and 3(3A)" shall be substituted;

(vi) in **FORM GSTR-1,** for Table 6, the following shall be substituted, namely:-

"6. Zero rated supplies and Deemed Exports

GSTIN of recipient	Invoice details			Shipping bill/ Bill of export		Integrated Tax			Cess
	No.	Date	Value	No.	Date	Rate	Taxable value	Amt.	
1	2	3	4	5	6	7	8	9	10
6A. Exports									
6B. Supplies made to SEZ unit or SEZ Developer									
6C. Deemed exports									

(vii) in **FORM GSTR-1A**, for Table 4, the following shall be substituted, namely:-

"**4. Zero rated supplies made to SEZ and deemed exports**

GSTIN of recipient	Invoice details			Integrated Tax			Cess
	No.	Date	Value	Rate	Taxable value	Tax amount	

1	2	3	4	5	6	7	8
4A. Supplies made to SEZ unit or SEZ Developer							
4B. Deemed exports							

(viii) in **FORM GSTR-4**, after instruction no.9, the following shall be inserted, namely:-

"10. For the tax periods July, 2017 to September, 2017 and October, 2017 to December, 2017, serial 4A of Table 4 shall not be furnished."

[F. No. 349/58/2017-GST(Pt.)]

(Dr. Sreeparvathy S.L.)

Under Secretary to the Government of India

Note:- The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, sub-section (i) vide notification No. 3/2017-Central Tax, dated the 19th June,2017, published vide number G.S.R 610 (E), dated the 19thJune, 2017 and last amended vide notification No. 36/2017-Central Tax, dated the 29thSeptember, 2017, published vide number G.S.R 1214 (E), dated the 29thSeptember, 2017.

The date of publication in the Official Gazette is 13th October, 2017